

Aderrig Green Parking Policy

(P r o p o s a l)

Objective

To establish clear, mandatory and enforceable rules to ensure organisation, safety, fairness among residents and proper use of common areas of the development. This policy is designed to ensure:

- Orderly and consistent use of parking
- Safe and unobstructed circulation
- Fair access for all residents
- Proper use of designated spaces

All parking within the Management Company's control is subject to this policy.

1.1 General Principle

All parking spaces within the development are subject to orderly regulation. However, this policy explicitly recognizes and protects the contractual, exclusive rights of use granted to specific residential units under Clause 65 of the Sales Deed. The Management Company retains the right to amend, update, and enforce this policy for the purpose of safety and fair administration, subject to the provisions of the Sales Deed.

No vehicle may be parked outside the conditions defined in this policy

Registration of all vehicles is mandatory prior to parking within the development

Only registered and authorised vehicles may use parking spaces

1.2 Allocation of Spaces

Certain parking spaces may be formally allocated to specific residential units

Allocated spaces are for the exclusive use of the assigned unit and its authorised vehicles

No other vehicle may occupy an allocated space without explicit authorisation

Deeded Rights: Where a parking space has been formally allocated to a specific residential unit under the Sales Deed, that unit holds an exclusive, permanent right of use. While the underlying land remains part of the managed estate common areas for structural maintenance purposes, the Management Company cannot revoke, alienate, or permanently alter the location of an allocated space, except strictly in accordance with Clause 67 of the

Sales Deed (requiring appropriate relocation and adherence to local authority requirements).

1.3 Prohibition of Space Appropriation

The following actions are strictly **prohibited**:

- Informal reservation of parking spaces by any means
- Exclusive use of non-allocated (common) spaces
- Installation of cones, barriers, signage, or any object intended to reserve a space
- Advertising, selling, or representing parking spaces as private assets
- Renting, lending, or transferring the use of any Car Parking Space, except where such transfer occurs together with the transfer, sale or lawful lease of the corresponding residential unit (the Sold Land) as permitted under Clause 28 of the Sales Deed, is prohibited. For the avoidance of doubt, residents hold the right to permit occupiers or visitors of their own unit to use their allocated space without requiring Management Company approval, provided the vehicle is registered under Section 1.9.

All parking spaces remain part of a controlled and shared system.

1.4 Use of Visitor Spaces

Visitor spaces are intended for **short-term only**.

The Maximum duration for visitor parking is indicated on the signage at the location.

It is expressly **prohibited**:

- Repeated or continuous use by the same vehicle
- Reservation or blocking of visitor spaces
- Use as overflow or alternative parking on a continuous or recurring basis by the same vehicle is not permitted

Visitor parking may be subject to registration and monitoring.

1.5 Accessible Spaces

- Accessible spaces are strictly reserved for vehicles displaying a **valid disability parking permit**
- The permit must be clearly visible at all times

Unauthorised use will result in **enforcement action**, without prior warning.

1.6 Electric Charging Spaces (EV)

EV spaces may be used for electric vehicle charging or as standard visitor parking spaces.

When actively charging, priority is given to electric vehicles.

When not charging:

- the space is treated as a standard visitor parking space
- a valid visitor parking ticket must be displayed
- failure to comply may result in enforcement, including clamping

Blocking access to charging when in use is not permitted.

1.7 General Parking Rules

It is strictly **prohibited**:

- Parking outside marked or designated spaces
- Parking on internal roads or circulation routes
- Parking on footpaths or pedestrian areas
- Parking in front of or obstructing any parking space
- Parking in a manner that exceeds the boundaries of a marked space
- Blocking access points, entrances, or emergency routes
- Parking in areas marked with double yellow lines at any time
- Parking in a manner that restricts visibility or safe manoeuvring
- Parking of commercial vehicles, vans, caravans, trailers, or oversized vehicles without prior approval

Any vehicle parked in violation of the above may be subject to immediate enforcement.

1.8 Residences without Designated Space

Units without an allocated parking space are not entitled to permanent use of common parking spaces within the development.

The following is not permitted:

- Use of visitor and EV spaces as a permanent or recurring car park space
- Use of accessible spaces without a valid permit
- Roadside parking within the development

Any occasional use of common parking must comply with general rules and available capacity. Where parking is required, residents are directed to the 17 spaces available for public use at Aderrig Heights / Celbridge Link Road.

1.9 Vehicle Registration and Identification

Registration of all vehicles is **mandatory**.

- All vehicles must be registered with the Management Company prior to use
- Each vehicle must be clearly linked to a specific residential unit

The system will include:

- Physical identification (e.g. permit/sticker) and/or digital registration
- Verification capability by enforcement;
- Assignment to a specific space where applicable

Failure to register a vehicle will result in enforcement action.

1.10 Enforcement and Penalties

An **active enforcement** system will be implemented.

Penalties will be progressive:

- Initial warning;
- Monetary fine;
- clamping and/or towing, where applicable.

The following principles apply:

- Enforcement is consistent and without exception
- Repeated breaches will escalate in severity
- Serious violations may result in immediate enforcement action without warning

1.11 Additional Provisions

Abandoned or Untaxed Vehicles

- Vehicles that are not roadworthy, taxed, or insured may not be parked within the development
- Such vehicles may be subject to removal

Multiple Vehicles per Unit

- Registration of multiple vehicles does not guarantee availability of multiple spaces
- Priority applies only to allocated spaces (where applicable)

Contractors and Temporary Vehicles

- Contractors must comply with all parking rules
- Temporary parking may be subject to prior approval or time restriction

Liability

The Management Company accepts no liability for damage, theft, or loss involving vehicles parked within the development